

FEDERAL MARITIME COMMISSION
Office of the Administrative Law Judges

FRANCIS SHEKA KANU, *Complainant*

v.

EJIKE DICKSON EZE DBA EJIKE INTERNATIONAL TRADE LIMITED; SEALINES INTERNATIONAL; SEAMATES INTERNATIONAL, INC.; AND MAERSK, *Respondents*.

DOCKET NO. 25-05

Served: August 5, 2025

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

ORDER REQUIRING COMPLAINANT TO FILE STATUS REPORT BY AUGUST 18, 2025

On July 21, 2025, I issued an Order Requiring Complainant to File Status Report by August 4, 2025. Complainant filed the status report. As discussed below, Complainant is **HEREBY ORDERED** to file an additional status report no later than **August 18, 2025**, reporting on the status of Complainant's container shipment.

Complainant filed a Complaint in this matter on March 19, 2025. In it, Complainant alleges that he worked with Respondent Ejike Dickson Eze d/b/a Ejike International Trade ("Eze") to have a container shipped from North Carolina to a port in Sierra Leone, but that it was eventually delivered to a port in Congo. (Complaint, ¶¶ IV.A-IV.H). Complainant alleges that despite his efforts to have the container re-shipped to the correct destination, including paying additional money, the container has not been re-shipped to the correct destination. (Complaint, ¶¶ IV.E-IV.N). Complainant alleges Shipping Act violations against Eze, as well as Respondents Maersk and SeaLines International and SeaMates International, Inc. ("SeaLines").

Currently outstanding are Motions to Dismiss by Maersk and SeaLines, as well as Complainant's Motion for Leave to Amend the Complaint ("Motion for Leave"). In addition, Complainant filed a Request to Discontinue and Withdraw Complaint/Docket No. 25-05 Before the Commission ("Request to Withdraw"). The Request to Withdraw is dated June 23, 2025, after the Motions to Dismiss were served, and after the Motion for Leave is dated.

In the Request to Withdraw, Complainant states that "in consideration" of the steps Eze has taken to redirect Complainant's container to the correct destination, Complainant requests that this matter be discontinued and withdrawn.

In order to clarify the Request to Withdraw, I ordered Complainant to file a status report no later than August 4, 2025.

On August 2, 2025, Complainant filed a status report. In the status report, Complainant asserts that Eze transmitted \$600 to a shipping agent in Congo to process the release of the container from customs. Complainant reports that after the container is released, arrangements will be made to have the container re-shipped to Sierra Leone. Complainant states that he anticipates receiving confirmation of the actual shipment date in the coming days. Complainant indicates that he believes that this matter can be fully resolved as to all Respondents if the container is properly transported to the correct destination. Complainant's status report includes a receipt for \$600, though the parties involved in the payment are unclear. The status report also contains a copy of a letter from Eze to Complainant asking that the Complaint be withdrawn in exchange for coordinating the shipment of the container from Congo to Sierra Leone.

Accordingly, Complainant is **HEREBY ORDERED** to provide a status report no later than **August 18, 2025**, regarding the status of the container at issue. Complainant is to include information regarding whether arrangements to ship the container have been made, including the dates of departure and arrival. The parties are advised that unless substantial progress is made towards the resolution of this matter, the parties should be prepared to move forward with litigation.

Richard C.
Ambrow Jr -S

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Richard Ambrow
Administrative Law Judge